MPUMELELO MAGAMA

versus

SIMILO MASIBI

And

ZIFUDZI (MATOBO DISTRICT LANDS OFFICER N. 0)

AND

THE SECRETARY (N.O) MINISTRY OF LANDS AGRICULTURE, WATER, FISHERIES AND RURAL DEVELOPMENT

AND

MINISTER OF LANDS, AGRICULTURE, WATER FISHERIES AND RURAL DEVELOPMENT

AND

SHERIFF OF ZIMBABWE

HIGH COURT OF ZIMBABWE
M DUBE J
BULAWAYO 13 & 16 JUNE 2025

Urgent Chamber Application

Ms N.V Moyo, for the applicant**.**
Mr N. Sithole, for the 1st respondent

DUBE J: On the 16th June 2025 I issued an order to the following effect:

Pending the determination of the application for Rescission of Judgment and Order the applicant is granted the following relief: -

1. That any execution or removal pursuant to a court order under case number HCBC 258/25 be and is hereby stayed.

2. Should it be that the Sheriff of Zimbabwe has already removed the applicant, the Sheriff of Zimbabwe be and is hereby ordered to re instate the applicant.

The appellant not satisfied with the said provisional order noted an appeal and sought for my reasons. These therefore are my reasons:

FACTUAL BACKGROUND

On the 9th of June 2025 the applicant filed an urgent application for stay of execution of an order of this same court evicting her from Stand Number 130 Khami under Matobo District. He averred that an order had been obtained in default under case number HCBC258/25 evicting him from the said property. He stated further that he was not aware of any proceedings to evict him from the said property as the initial court papers were served on a person unknown to him. He stated that on the 5th of June she was called by his employee one Aleck Moyo informing him that some papers had been served on the said property. He drove from Bulawayo where he ordinarily resides to the said plot in Matobo only to discover that the court papers were in fact a Notice of Removal, a Court Order and a Writ of Ejectment. The removal was set to take place on the 10th of June 2025. The writ however described the property as Plot No. 63 Lovendale, Matobo District.

The IECMS system indicates that the matter was allocated to me on the 10th June 2025 at 15:46 hours. I immediately directed that the application be served on all the parties cited. Proof of service was uploaded on the 12th June and I immediately set the matter down for hearing on the 13th June at 9am. On the 13th the legal practitioner for the applicant appeared with the applicant. For the 1st respondent *Ms L.V. Nkomo* appeared. She placed on record that she appears on behalf of a colleague, *Mr T. Moyo* who was on that day indisposed due to an illness. She further stated that she was instructed by counsel seized with the matter to seek a postponement to the 16th June when the said counsel would be able to attend. Counsel for the applicant stated that out of professional courtesy she would not oppose the application when a learned colleague was unwell. She however specifically put on record that by so doing she does not acquiesce to the lack of urgency in the matter. *Ms Nkomo* placed on record that as soon as they had been served with the application, they placed the sheriff on hold pending the outcome of the current application. She further tendered the wasted costs for the day. With that understanding the matter was postponed to the 16th of June by consent and the 1st respondent ordered to meet the wasted costs.

On the 16th of June it is not counsel *T. Moyo* who appeared by *Mr N.Sithole*. Quite surprising he took a preliminary point attacking the very urgency of the matter and that the matter had been over taken by events. He stated that the 5th respondent i.e the Sheriff of this court had already executed the order that is sought to be stayed. He stated that the execution took place on the 13th June 2025 at 10:15 am. That meant the execution was done after the appearance of counsel in chambers and given a postponement order by consent. What it further meant is that the submissions placed by *Ms L.V Nkomo* that the 5th respondent had been placed on hold were false. In any event counsel for the applicant had acted on that assurance to accede to a postponement. It is therefore not clear if the illness and unavailability of *Mr T. Moyo* was just a ruse.

I dismissed the preliminary point and pointed out that counsel for the 1st respondent was acting unethically having placed the applicant and indeed the court on a lull and then went ahead to order execution nicodemously.

On the Merits

Counsel for the applicant argued on behalf of the applicant that he prays for an interdict to stop the demolition of his structures in form of a wooden cabin and a fence that he had erected around the piece of land. She argued that he had a *prima facie* right defended since he had already filed an application for rescission of judgment on the main matter. She argued that what was in contention at this juncture is not a clear right but a *prima facie* one. Should the court not grant the relief sought she argued that the applicant would suffer irreparable harm as his structures would be demolished. She submitted that the sheriff had placed locks on the gates, but had promised to come back to do the demolitions. She argued that the High Court has inherent jurisdiction to regulate its own processes in the interest of real and substantial justice.

The 1st respondent opposed the application and submitted that in the main case HCBC 258/25 she had a good case in that she was allocated the same piece of land by the then Umguza Rural District Council in year 2009. Sometime later the jurisdiction of the local authority was changed as that piece of land was transferred to the Matobo Rural District Council sometime in year 2020. This explains why the property is no longer described as Lovendale of Umguza District but rather as Khami of Matobo District. It seems the Matobo RDC then allocated such land to the applicant despite continuing to collect levies from the 1st respondent. She states that

she had erected her own fences which the applicant removed and despoiled her. When that happened, she made a report to the Zimbabwe Republic Police Figtree under RRB5519329 and CR11/03/25. She went further and filed a *mandamus van spolie* which was granted in default. They argued that when the applicant herein occupied that land and erected its own structures it did not find virgin land. It was argued that 1st respondent was the earlier occupier of the land and accordingly had a better claim to the land. It argued that on the main the applicant herein has very poor prospects of success if at all. It was argued that the applicant had another remedy available to him ie, by seeking the allocating authority to allocate him another piece of land. Regarding the fear of demolition of his property it was argued that he can go and remove his structures himself.

In replication, the applicant contended that it found no fences nor structures when it was allocated the land in year 2024. The land was shown to him by 4th respondent as a vacant piece of land. For that reason, the applicant denies ever despoiling the 1st respondent. He insisted that he never employed a Keith Nyathi who is said to have received service on his behalf at the said property. It was argued in conclusion that the court should concern itself with

a) whether the applicant has a prima facie right.

b) the balance of convenience and

c) the prospects of success on the main

After hearing the parties, I was satisfied that the requirements for an interdict were satisfied in favour of the applicant. I found guidance in the matter of *Airfield Investments (Pvt) Ltd* v *The Minister of Lands, Agriculture and Rural Resettlement and 4 Others* 2004(1) ZLR 511(S) where it was held thus;

For an applicant to succeed in an application for interim relief, the following requirements must be met:

i) That the right which he or she seeks to protect by means of interim relief is clear or, if not clear, is *prima facie* established though open to some doubt;
ii) Well-grounded apprehension of irreparable harm to the applicant if the interim relief is not granted and he were to ultimatley succeed in establishing his/ her right;
iii) The balance of convenience favours the granting of the interim relief; and

iv) That the applicant has no other satisfactory remedy.

(*See also Beach Consultancy (Pvt) Limited* v *Obert Makonya and Ano* HH696-21*)*

In the present matter to quote the words of MAKOMO J in the *Beach Consultancy* matter *supra*

> "Like a game of chess the parties sought to checkmate each other and sought to occupy the most advantageous position in this legal contestation."

The 1st respondent herein through its counsel sought to create a legal conundrum through deceit. It was served with the urgent chamber application before execution. It instructed legal counsel from its law firm to come and beg for an indulgence. Though reluctantly, such indulgence was acceded to by counsel for the applicant out of professional courtesy. This court endorsed such extension of courtesy and recorded it as an order of court obtained by consent. Clearly counsel for the 1st respondent abused that professional courtesy and walked back on their word. Can they be allowed to benefit from their malfeasance? My view is, No. Otherwise to hold differently would be to allow the 1st respondent, through its counsel to benefit from its unethical conduct. That has a potential of setting an improper precedent for counsel to negotiate in bad faith in the future.

In any event the applicant had established *a prima facie* right by being allocated land by Matobo RDC. It could be a genuine double allocation stemming from the change of the local authorities' jurisdiction. That would be determined at trial in the rescission application. Should he be evicted in the interim he would no longer be a custodian of his property in form of the wooden structure and fences that he erected at a considerable cost per his submissions. If that is left in the hands of the 1st respondent she might not be accountable should it be destroyed or vanish. Worse still 1st respondent does not seem worthy of keeping its word. Should applicant then succeed in establishing its right, then the harm would be surely irreparable. The balance of convenience favours maintaining the *status quo ante* before the 1st respondent walked back on its word. The remedy of making a compensatory order should the applicant's property be destroyed might not work out to be the most satisfactory.

It is for the above reasons that I granted the provisional order couched in the manner I did.

Tanaka Law Chambers, applicant's legal practitioners
Ncube attorneys, 1st respondent's legal practitioners